

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV061492

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JAMES M. TACHERRA	
vs.	
DEFENDANT: ERNEST J. TACHERRA	

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

Defendant Ernest J. Tacherra (“Defendant”), filed a motion on April 24, 2026, for recovery of reasonable fees and costs, and requests that the Court order the receiver in this action, Lawrence Baskin (“Receiver”), to use a portion of the proceeds from the sale of Tacherra Ranch, to pay directly to attorney’s fees for Defendant’s lawyer Elizabeth Brekhus, Esq. The fee request is \$115,943.43, which counsel proposes should be assigned to the responsibility of the partners according to their interest in the property, i.e., 65% to Plaintiff James Tacherra (“Plaintiff”) (\$75,363.23) and 35% to Defendant (\$40,580.20).

On August 31, 2011, the Court entered an interlocutory judgment partitioning the Tacherra Ranch properties. Pursuant to the interlocutory judgment, the Receiver has disposed of all the properties. The Receiver was ordered to distribute 35% of the net proceeds of the sale of the Ranch Property to Defendant, less approximately \$145,000 that Defendant owes to the partnership account.

Ms. Brekhus asks for payment of fees and costs of \$115,943.43 in attorney fees and costs in satisfaction of her outstanding billing owed for legal work associated with determining the proportional financial percentage of the properties between the two partners.. The request is GRANTED.

I. Fees resulting from common benefit partition distribution

Pursuant to Cal. Code of Civil Procedure § 874.020:

The costs of partition include reasonable expenses, including attorney’s fees, necessarily incurred by a party for the common benefit in prosecuting or defending other actions or other proceedings for the protection, confirmation, or perfection of title, setting the boundaries, or making a survey of the property, with interest thereon at the legal rate from the time of making the expenditures.”

In determining whether to award attorney's fees, whether the services in question are for the “common benefit” must be decided on the facts and circumstances in each case. (*Stewart v. Abernathy* (1944) 62 Cal. App. 2d 429, 432-433.) Fees incurred for the “common benefit” include fees incurred to achieve “the proper distribution of the ‘respective shares and interests in said property by the ultimate judgment of the court...’” (*Orien v. Lutz* (2017) 16 Cal.App.5th 957, 967-968, citations omitted; CCP §874.040 states “the court shall apportion the costs of partition [i.e., the attorney fees incurred for the common benefit] among the parties in proportion to their interests or make such other apportionment as may be equitable.” “[T]hose parties who share in the benefits of the proceeding should share in the costs equal to those benefits.” (*Finney v. Gomez* (2003) 111 Cal.App.4th 527, 546-547, referring to *Stutz v. Davis* (1981) 122 Cal.App.3d 1, 4.).

Defendant argues that the very fact that an interlocutory judgment was entered which awards the Plaintiff with 65 percentage interest is a strong indication that the action provided a common benefit to both parties. Brekhus’ services were to achieve and did achieve the proper distribution of Plaintiff’s and Defendant’s shares and interests in the subject property.

Moreover, the court disagrees with the Plaintiff’s assertion that this case involves a “prevailing party.” This matter involved partition of property, not a contract dispute. (*Orien v. Lutz* (2017) 16 Cal.App.5th 957, 967-968; “common benefit” determination focuses on whether a partition action results in a proper division and distribution interest in property, without regard to litigation objectives.) Plaintiff’s argument that the court may assign an equitable distribution is contrary to case law, which requires apportionment in proportion to the court determined interest in the property at issue. *Id.*

II. Payment before final accounting

Defendant argues that there is a priority claim to the proceeds of the sale of the Ranch Property because the attorney client retainer consents to a lien recovery. A holder of an attorney’s lien is entitled to “any available equitable remedy necessary to effect payment of his fee for services rendered in connection with his client's claim out of any recovery upon that claim.” (*Epstein v. Abrams* (1997) 57 Cal. App. 4th 1159, 1169, citations omitted.) “Public policy favors giving attorneys' contractual liens for legal services priority over judgment creditors' liens crucial for debtors to be able to retain legal counsel, and a debtor's ability to retain counsel may also accrue to the benefit of the client's creditors.” (*Pangborn Plumbing Corp. v. Carruthers & Skiffington* (2002) 97 Cal.App.4th 1039, 1047.) A law firm’s reasonable attorney’s fee lien has priority over a judgment lien. (*Id.* at 1051-1053) The lien incorporated into the attorney client retainer creates a “first in time” priority, because the proceeds are recovered to the parties because of this litigation. *Id.* at 1052. Here, resolution of the merits by entry of the interlocutory judgment is different from the compensable attorney time that was committed to reach the final decision on apportionment of the property, which follows with the final accounting of the estate for distribution. The final accounting should include funds remaining after the payment of attorney’s fees.

III. Attorneys’ Fees

The court will typically scrutinize the reasonableness of the fee petition request under the “lodestar” method by determining the lodestar, which consists of the number of hours reasonably spent by the reasonable hourly rates for that work on a non-contingency basis. The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo v. Las Virgenes Water District*, (2000) 79 Cal.App.4th 440, 445-446.)

A. Reasonable Rate.

Plaintiff’s counsel Elizabeth Brekhus, Esq. states in her declaration that her requested fee rate is \$500 per hour and \$450 for her associate. Her current hourly rate is \$850 an hour for regular legal work and \$900 an hour for trial work. However, the rate charged was discounted in consideration of the Defendant’s financial circumstances.

The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo*, 79 Cal.App.4th 445-446.). “The experienced trial judge is the best judge of the value of professional services rendered in his court.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, citing *Serrano v. Priest (Serrano III)* (1977) 20. Cal.3d 25, 49.)

The Plaintiff does not object to the requested fee rate.

Counsel bears the burden of proof to establish “reasonable rates in the local community as a basis for [the fee] award.” (*Nemecek & Cole v. Horn* (2012) 208 Cal. App. 4th 641, 652; see also *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 155 [explaining the reasonable hourly rate is that prevailing in the community for similar work].) “The relevant ‘community’ is that where the court is located.” (*Altavion, Inc. v. Konica Minolta Sys. Lab., Inc.* (2014) 226 Cal.App.4th 26, 71.) “[U]se of reasonable rates in the local community, as an integral part of the initial lodestar equation, is one of the means of providing some objectivity to the process of determining reasonable attorney fees.” (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.).

The court finds the hourly rates requested by the Brekhus Law Firm be eminently reasonable, and well in line with, if not significantly below, the reasonable compensable rates charged by Marin County attorneys with similar experience.

B. Hours Worked.

A party who seeks attorney’s fees has the initial burden of “documenting the appropriate hours expended.” (*ComputerXpress Inc. v. Jackson*, (2001) Cal.App.4th 993, 1020.) Once a documented hour total has been submitted, the opposing party may make objections to the hours claimed. General objections that work is “excessive” or “unreasonable” are insufficient. The objections should be specific. (*Premier Med. Mgmt. v California Ins. Guarantee Ass’n*, (2008) 163 Cal.App. 4th 550, 563.)

The basis for calculating the lodestar “must be the actual hours counsel devoted to the case, less those resulting from ineffective or duplicative use of time.” (*Horsford v. Board of Trustees of Cal. State*, (2005) 132 Cal.App. 4th 359, 395.) The court also recognizes these billing records of counsel constitute “verified time statements of the attorneys, as officers of the court, and are entitled to credence in the absence of a clear indication that the records are erroneous.” *Id.* at 394.

Plaintiff does not object to the attorney compensatory hours entered in the billing statements submitted by counsel.

Defendant's counsel submitted detailed contemporaneously created billing statements that were attached to the Brekhus declaration as Exhibit C.

C. Fees and Costs Awarded

Plaintiff's counsel seeks:

1. \$33,962.26 - past due amount relating to costs incurred at the trial of the matter and in connection with the post-trial proceedings;
2. \$54,555.16 – fees and costs incurred from April 1, 2020, to the present in connection with this on-going partnership proceeding; and
3. \$27,426.01 total consisting of attorney's fees (\$26,827.50) and costs (\$598.51) the related Tacherra Ranch Tenants' Association v. Lawrence Baskin et

The total fee request totaling \$115,943.43 is assigned of the partners according to their interest in the property, i.e., 65% to Plaintiff (\$75,363.23) and 35% to Defendant (\$40,580.20), and shall be distributed from partnership distribution and paid directly by the receiver. This total includes the requested \$598.51 in costs.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2204312

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: LIPOSOME
FORMULATIONS INC.

vs.

DEFENDANT: GIGIA L. KOLOUCH, ET AL

NATURE OF PROCEEDINGS: 1) MTION - COMPEL - DISCOVERY FACILITATOR PROGRAM
2) MOTION – QUASH - DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Liposome Formulations, Inc. filed a motion on April 30, 2026, to compel Travelers Casualty Insurance Company (“Travelers”) to comply with compliance with Plaintiffs’ Deposition Subpoena for Production of Business Records. Travelers is a non-party to the litigation and filed an opposition brief on July 13. Plaintiff filed a reply brief on July 17.

Novato Business Center Owners Assoc. filed a Motion to Quash Plaintiff’s deposition subpoena on behalf of Travelers on June 26.

Both motions are set for hearing on July 24.

Pursuant to Marin County Rule, Civil 2.13B, on July 21, 2026, Patrice Goldman, Esq. was appointed to preside as Discovery Facilitator to assist the parties to resolve Plaintiff’s Motion to Compel. Given the late appointment of the Discovery Facilitator, the Court is not surprised to have not received a Declaration of Non-Resolution from either party MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing but also requires that “[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party’s contentions.***” (MCR Civ 2.13H(1), emphasis added.)

The matters are continued to the next motion hearing date of October 2, 2026, at 1:30 p.m. in the department to provide the parties with more time to meaningfully participate in the facilitator program.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0001920

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: IVAN ARAUJO

vs.

DEFENDANT: CITY AND COUNTY OF
SAN FRANCISCO, A PUBLIC ENTITY, ET
AL

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff Ivan Araujo filed a motion on April 28, 2026, to compel further responses for Request for Production of Documents (Set Four) from Defendant Golden Gate Bridge Highway and Transportation District. Defendants California Dept. and Transportation and GGBH filed opposition briefs on July 14. Plaintiff filed its reply brief on July 20.

Pursuant to Marin County Rule, Civil 2.13B, on July 20, 2026, James Sell, Esq. was appointed to preside as Discovery Facilitator to assist the parties to resolve Plaintiff's Motion to Compel. Given the late appointment of the Discovery Facilitator, the Court is not surprised to have not received a Declaration of Non-Resolution from either party MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing but also requires that "[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party's contentions.***" (MCR Civ 2.13H(1), emphasis added.)

The matters are continued to the next motion hearing date of October 2, 2026, at 1:30 p.m. in the department to provide the parties with more time to meaningfully participate in the facilitator program.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by

order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004154

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: KARLA RIVERA

NATURE OF PROCEEDINGS: MOTION – OTHER; VACATE THE CONDITIONAL
DISMISSAL AND FOR ENTRY OF JUDGMENT

RULING

Plaintiff American Express filed on April 29, 2026, a motion , to file a motion pursuant to Code of Civil Procedure section 664.6 ("CCP 664.6") for the Court to vacate the conditional dismissal and enter a judgment in favor of Plaintiff and against Defendant Karla Rivera a/k/a Karla K Rivera ("Defendant"), on the grounds that Defendant has failed to make payments consistent with the settlement agreement and that this Court has jurisdiction to enter a judgment consistent with the agreement between Plaintiff and Defendant under CCP 664.6.

Defendant has not filed a response, nor was an opposition to the motion filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) Plaintiff's motion is therefore GRANTED in it's entirety.

Plaintiff to lodge the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006536

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: SOO YOUNG KIM, ET AL vs. DEFENDANT: HARRIGAN WEIDENMULLER COMPANY	
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NATURE OF PROCEEDINGS: DEMURRER

RULING

This matter was called on June 12, 2026, as regularly scheduled in this department. The matter was continued to July 24, 2026, at the request of Defendant, for argument.

On July 17, 2026, the parties filed a joint stipulation to request a second continuance of hearing of the demurrer to continue with settlement discussions. However, they did not file a proposed order with the stipulation.

The request is GRANTED. The hearing on Defendant's demurrer is continued to October 2, 2026, at 130 pm in this department,.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008688

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JONAS OPPEDAL

vs.

DEFENDANT: RIVIAN AUTOMOTIVE LLC,
A DELAWARE LIMITED LIABILITY
COMPANY

NATURE OF PROCEEDINGS: 1) MOTION – COMEPL - DISCOVERY FACILITATOR
PROGRAM

2) MOTION – COMPEL ARBITRATION

RULING

Defendant Rivian Automotive LLC’s motion to compel arbitration is **GRANTED**. This action is stayed pending resolution of the arbitration.

Allegations in Plaintiff’s Complaint

Plaintiff Jonas Oppedal filed his Complaint against Defendant Rivian Automotive LLC (“Rivian Automotive”) on December 30, 2025, alleging that on September 25, 2023, he purchased a 2023 Rivian R1S (the “Vehicle”). Plaintiff alleges the Vehicle was delivered to Plaintiff with serious defects which were covered by the warranty. These include electrical defects, interior component defects, exterior and body component defects, and suspension system defects. Plaintiff asserts three causes of action against Rivian Automotive alleging violations of the Song-Beverly Act.

The Purchase Agreement

Rivian Automotive seeks to compel arbitration under the Purchase Agreement and Rivian Motor Vehicle Purchase Agreement executed by Plaintiff (the “Purchase Agreement”). The first paragraph of the Purchase Agreement states that it is a binding contract between Plaintiff and “RIVIAN, LLC (“RIVIAN”, “WE”, “US” OR “OUR”)”. Paragraph 16 provides in part:

16. DISPUTE RESOLUTION – ARBITRATION, CLASS ACTION WAIVER

Binding Arbitration. To the fullest extent permitted by applicable law and except for small claims or if You choose to opt-out as provided below, You and Rivian agree to resolve any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or Our relationship, including advertising and other communications between You and Rivian,

Rivian products or services, and as applicable, Your credit application, or the purchase or condition of the Vehicle (a “Dispute”) by binding arbitration conducted by the American Arbitration Association (“AAA”) in accordance with the AAA Consumer Arbitration Rules, unless You and We agree otherwise. For more information on arbitration and to access the AAA Consumer Arbitration Rules, please visit: www.adr.org. If the AAA Consumer Arbitration Rules conflict with this Agreement, then this Agreement shall control. **You and We understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to present our claims to a jury and to have claims resolved by a jury trial, and also that judicial appeal rights, if any, are more limited in arbitration than they would be in court**

Applicable Law. This Section 16, Dispute Resolution – Arbitration and Class Action Waiver, its subject matter, formation and enforceability will be governed by the Federal Arbitration Act as interpreted by the federal courts, and not any state law regarding arbitration

Opt-Out Right. You may opt-out of this Section 16, Dispute Resolution – Arbitration and Class Action Waiver within 30 days from the date You electronically sign this Agreement, by sending an email to optout@rivian.com from the email associated with Your Rivian ID with “Opt-Out of Arbitration” in the subject line and, in the body of the email, Your full name and address. You agree that any request will not apply to subsequent agreements between You and Rivian unless the other agreement provides an option to opt out and You follow the requirements outlined in that agreement.

(Declaration of Caitlin Bethlahmy (“Bethlahmy Decl.”), Exh. A.) Rivian Automotive argues that there is no evidence Plaintiff opted out of this arbitration provision.

Plaintiff does not dispute that he executed the Purchase Agreement and that he did not opt out and argues that Rivian Automotive does not have standing to compel arbitration under this agreement because it is not a party to the agreement. The only parties to the Purchase Agreement are Plaintiff and Rivian, LLC. In paragraph 13, Rivian, LLC expressly disclaims warranties. (*Id.*)

Rivian Automotive argues that it can enforce the arbitration provision in the Purchase Agreement under the doctrine of equitable estoppel. Under this doctrine, “a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are intimately founded in and intertwined with the underlying contract obligations . . . The reason for this equitable rule is plain: One should not be permitted to rely on an agreement containing an arbitration clause for its claims, while at the same time repudiating the arbitration provision contained in the same contract.” (*DMS Services, LLC v. Superior Court* (2012) 205 Cal.App.4th 1346, 1354 [citations and internal quotations omitted].) “It is not enough that a complaint simply refers to a contract; the claims must be founded on the contract. Nor is it sufficient that a complaint alleges collusion between a signatory and nonsignatory defendant, or that the controversy would not have occurred but for the existence of the contract, provided the contract is not the basis for the claims against the nonsignatory. In these situations, the policy rationale for equitable estoppel—relying on an agreement for one purpose while disavowing the arbitration clause of the agreement—does not exist.” (*Mattson Technology, Inc. v. Applied Materials, Inc.* (2023) 96 Cal.App.5th 1149, 56 [citations and internal quotations omitted].)

The court decides whether the doctrine of equitable estoppel applies, notwithstanding the existence of a delegation clause in the arbitration provision. (See *American Builder’s Assn v. Auyang* (1990) 226 Cal.App.3d 170, 179-180; *Unimart v. Superior Court* (1969) 1 Cal.App.3d 1039, 1045; *Kramer v. Toyota Motor Corp.*, 705 F.3d 1122, 1127-1128 (9th Cir. 2013); *Young v.*

ByteDance Inc., 700 F.Supp.3d 808, 812 (N.D. Cal. 2023); *Atkins v. Amplitude, Inc.*, No. 24-cv-04913-RFL, 2025 WL 2521732, *2 (N.D. Cal. Sept. 2, 2025).)

The California Supreme Court recently addressed equitable estoppel in the Song Beverly Act context in *Ford Motor Warranty Cases*, 17 Cal.5th 1122 (2025). In that case, the plaintiff car purchasers signed a sales contract with various dealerships that contained an arbitration provision that required “you” (the purchaser) and “Seller-Creditor” (the dealership) to arbitrate claims arising out of the buyer’s “credit application, purchase, or condition of this vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who did not sign this contract)”. The plaintiffs sued Ford, the manufacturer, for violations of the Song Beverly Act and concealment/misrepresentation. The trial court denied Ford’s motion to compel arbitration based on the equitable estoppel doctrine, the Court of Appeal affirmed the trial court decision, and the California Supreme Court affirmed the Court of Appeal decision. In rejecting Ford’s equitable estoppel argument, the court held:

Plaintiffs’ causes of action against Ford do not depend on or invoke any of the terms of the sales agreements with the dealers, nor can they be construed to seek any benefit from those sales contracts . . .

Nevertheless, Ford seeks to suggest the suits are intertwined with the sales agreements. It urges that all its own warranties, whether express or implied, derive from the sale of goods, making them intertwined with the underlying sales contracts on that basis. It points to language in both the Song-Beverly Act and the California Uniform Commercial Code mentioning sales. The argument fails. Plaintiffs’ warranty claims “arise from a statutory scheme separate and apart from the contracts.” Under the Song-Beverly Act, “[u]nless disclaimed in the manner prescribed by this chapter, every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer’s and the retail seller’s implied warranty that the goods are merchantable.” Manufacturers may also make express warranties, which trigger various statutory provisions covering notice and repair or replacement of nonconforming goods. Warranties must also “conform to the federal standards for disclosure of warranty terms and conditions set forth in the federal Magnuson-Moss Warranty-Federal Trade Commission Improvement Act . . .” These obligations are not terms of the sales contracts themselves but are imposed by statute . . .

In these contracts, the dealers expressly disclaimed any assurance of warranty and made no representation as to warranties that “the manufacturer may provide.” Even though a buyer may receive a manufacturer’s warranty because it bought a manufacturer’s car from a dealer, “nothing in the California Uniform Commercial Code suggests that this automatically makes the manufacturer’s warranty a part of the sale contract between the buyer and the dealership.” . . .

(*Id.* at p. 1133-1135 [citations omitted].) The Ninth Circuit recently followed the rationale of *Ford Motor Warranty Cases* in *Olson v. FCA US, LLC*, 176 F.4th 612, 622 (9th Cir. 2026) [“Like the plaintiffs in *Ford Motor Warranty Cases*, none of Olson’s claims are founded in or intertwined with the terms of the lease agreement. Rather, Olson’s claims rely on rights created by California statutes and by a warranty provided directly by FCA. [FN] Thus, under *Ford Motor Warranty Cases*, FCA cannot use equitable estoppel to enforce the arbitration agreement in Olson’s lease”].)¹

¹ Plaintiff relies on the holding in *Ford Motor Warranty Cases*, *Olson*, or *Kostandian* (*infra*) while citing older cases that predate the decision. Defendant cites *Ford Motor Warranty Cases* and *Kostandian* only in its Reply.

Ford Motor Warranty Cases and *Olson* apply here. Plaintiff's claims are based on a warranty provided by Rivian Automotive and his rights under the Song Beverly Act. Further, as in *Ford Motor Warranty*, the seller here, Rivian, LLC, disclaimed implied and express warranties (in paragraph 13) of the Purchase Agreement. As a result, those warranties cannot be deemed to be part of the Purchase Agreement. The Court therefore declines to compel arbitration of Plaintiff's claims against Rivian Automotive based on the arbitration provision in the Purchase Agreement.

New Vehicle Limited Warranty Guide

Rivian Automotive also seeks to compel arbitration under the New Vehicle Limited Warranty Guide (the "Warranty Guide"), which is the warranty from Defendant Rivian Automotive for the Vehicle. The Warranty Guide states in part:

DISPUTE RESOLUTION - ARBITRATION, CLASS WAIVER

Any claim or dispute you may have related to your New Vehicle Limited Warranty or the duties contemplated under the warranty (among other disputes) will be arbitrated pursuant to the terms of the Final Agreement to Purchase. Under that agreement, you agreed to resolve disputes with Rivian by binding arbitration, rather than litigation in court. Please reference your Final Agreement to Purchase for full details. If you prefer not to submit your dispute to the BBB Auto Line Program described above, you may proceed, after undertaking reasonable and good faith efforts to settle the dispute directly, to binding arbitration or small claims court under the Final Agreement to Purchase. For your convenience, the relevant portion of the Final Agreement to Purchase is reproduced below."

(Bethlahmy Decl., Exh. B.) The Warranty Guide then recites in full paragraph 16 of the Purchase Agreement, which is the arbitration provision. Ms. Bethlahmy states in paragraph 6 of her declaration that "The New Vehicle Limited Warranty Guide contains the Arbitration Agreement incorporated by reference into the Rivian Motor Vehicle Purchase Agreement. At the time of purchase, Plaintiff was able to access the New Limited Warranty Guide using the hyperlink in Section 13 of the Rivian Motor Vehicle Purchase Agreement. The warranties are provided by Rivian, LLC's wholly-owned subsidiary, Rivian Automotive LLC. Attached as Exhibit B is a true and correct copy of the New Vehicle Limited Warranty Guide applicable to the subject vehicle."

Plaintiff does not argue that he did not sign the Purchase Agreement or that a copy of the Warranty Guide was not available to him when he signed the Purchase Agreement. Rather, Plaintiff argues that he did not expressly affirm his consent to the arbitration provision in the Warranty Guide and that his silence or inaction with respect to opting out does not equate to consent.

This issue was recently addressed in *Kostandian v. America Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, in which the court distinguished *Norcia*, the case relied upon by Plaintiff and held that a car buyer was bound by a warranty booklet from the manufacturer that contained an opt out provision. The court applied the burden shifting analysis from *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, finding that the manufacturer satisfied its initial burden of establishing an agreement to arbitrate and the buyer failed to satisfy his burden of challenging that agreement. (see, *Id.* at pp. 882-884.)

Under the rationale of *Kostandian*, the Court grants Rivian Automotive's motion.

Rivian Automotive has presented evidence of the Warranty Guide and that the Warranty Guide was identified in the Purchase Agreement with a hyperlink for Plaintiff to access the Warranty

Guide when he purchased the Vehicle. Rivian Automotive has therefore satisfied its initial burden of showing an agreement to arbitrate under *Condee*. Like the buyer in *Kostandian*, Plaintiff fails to present any evidence to satisfy his burden of challenging the existence of the arbitration agreement.

He does not submit his own declaration to dispute Rivian Automotive's showing. Plaintiff submits only the declaration of his attorney, who states (without personal knowledge) that Plaintiff "did not contact Defendant and opt-out of Defendant's 2023 Warranty Guide arbitration provision, did not sign, or otherwise expressly affirm its consent to arbitrate warranty claims." (Declaration of Kristina Kousherian, ¶3.) Plaintiff does not dispute that he received the Warranty Guide or that the Warranty Guide attached with Rivian Automotive's papers is not an accurate copy.²

The Court is not persuaded by Plaintiff's additional argument that he cannot waive a jury trial under the Song Beverly Act's anti-waiver provision, Civil Code Section 1790.1, and was unable to locate any support in the papers to adopt that argument.

Work Orders

Because the Court grants the motion based on the language in the Warranty Guide, it need not address Rivian Automotive's additional argument that it can compel arbitration under the work orders that Plaintiff executed when he brought the Vehicle in for repair. (MPA, p. 1:19-20, 5:22-6:14.) Rivian Automotive does not fully develop this argument in any event, focusing its brief instead on the Warranty Guide and the Purchase Agreement. (MPA, Heading B, pp. 8:18-16:10.) A party's failure to adequately develop its argument with meaningful legal analysis forfeits the argument; the court is not bound to develop a party's argument for it. (See *Meridian Financial Services, Inc.* (2021) 67 Cal.App.5th 657, n. 15.) Rivian Automotive cannot make its substantive argument for the first time in its Reply as this does not give Plaintiff any meaningful opportunity to address it.

Stay

Rivian Automotive's motion to compel arbitration is granted. This action is stayed pending resolution of the arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

The matter is set for a Case Management Conference on February 23, 2027, at 9 a.m. in this department. The CMC set for August 18, 2026, is vacated.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

² Indeed, Plaintiff's claims against Rivian Automotive in this case are based on that very warranty.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0009291

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MITCHELL OCONNOR	
vs.	
DEFENDANT: MARIN M. ENTERPRISES	

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendant Marin M. Enterprises’ (“Defendant”) petition to compel arbitration is GRANTED IN PART as follows: Plaintiff is compelled to arbitrate his First through Ninth Causes of Action to the extent he brings them in his individual capacity. (9 U.S.C. § 4.) To the extent he brings these claims as a representative of a class of similarly situated people, these claims are dismissed based on the class action waiver in the parties’ arbitration agreement. The petition to compel arbitration is DENIED as to Plaintiff’s Tenth Cause of Action, which is the Private Attorneys General Act (“PAGA”) claim. All litigation in this case is stayed pending the outcome of the arbitration. (9 U.S.C. § 3.)

BACKGROUND

This is a class action for alleged employment law violations. Plaintiff alleges that he is a former employee of Defendant. (FAC, ¶ 8.) He brings eight causes of action for violations of the California Labor Code, both individually and on behalf of a class composed of certain current and former employees of Defendant. (*Id.* at ¶ 2.) Plaintiff asserts a cause of action under the Unfair Competition Law, also individually and on behalf of the class. (*Id.* at ¶ 2.) Finally, Plaintiff asserts a cause of action under the PAGA.

The Court now considers Defendant’s petition to compel Plaintiff to arbitrate all his individual claims against Defendant. Defendant simultaneously requests an order dismissing Plaintiff’s complaint to the extent it brings claims on behalf of others.

LEGAL STANDARD

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1281.) A written agreement to submit future controversies to arbitration “is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (*Ibid.*) California law provides that “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a

controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines” that one of certain exceptions applies. (Code Civ. Proc., § 1281.2.) If the Federal Arbitration Act (“FAA”), as opposed to state law, governs an arbitration agreement, the court is required to compel arbitration “upon being satisfied that the making of the agreement for arbitration or the failure to comply therewith is not in issue” and to order a stay pending the outcome of the arbitration. (9 U.S.C. §§ 3, 4.)

On a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of the evidence a ground for denial (e.g., fraud, unconscionability, etc.). (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 758.)

DISCUSSION

Defendant operates the Marin Mazda car dealership in San Rafael. (Link Dec.,¹ ¶ 2.) Plaintiff was a salesperson for Defendant from March 2025 through July 2025. (*Ibid.*) When hired, Defendant presented Plaintiff with a document entitled “Binding Arbitration Agreement” (the “BAA”). (Petition, Ex. A; see also Link Dec., ¶ 7.) Plaintiff electronically signed the BAA through Defendant’s online human resources management portal on March 24, 2025. (Petition, Ex. A.) Defendant’s Regional Controller, Diane Link, signed the BAA on Defendant’s behalf. (*Ibid.*; see also Link Dec., ¶¶ 2, 7.)

The BAA provides that the employee signatory shall “pursue any claims [he] might have against the Company that currently exist or that may arise in the future exclusively through binding arbitration.” (Petition, Ex. A, § 1.) This requirement is mutual – Defendant is likewise bound “to pursue any claims it might have against [the employee signatory] that currently exist or that may arise in the future exclusively through binding arbitration.” (*Ibid.*) The BAA specifies a few claims that need not be arbitrated, but none of those exceptions apply to this case. (Petition, Ex. A, §§ 1, 3.) It further provides that the agreement is governed by the FAA. (*Id.* at § 4.) Plaintiff does not dispute the reach of the BAA or the fact that he signed it. His primary argument is that the BAA is unconscionable and cannot be enforced.

“Because unconscionability is a reason for refusing to enforce contracts generally, it is also a valid reason for refusing to enforce an arbitration agreement[.]” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; see also Code Civ. Proc., § 1281.) The prevailing view is that for a court to refuse to enforce a contract due to unconscionability, each of two types of unconscionability must be present, but not necessarily to the same degree. (*Armendariz, supra*, 24 Cal.4th 83, 114.) “Procedural unconscionability pertains to the making of the agreement; it focuses on the oppression that arises from unequal bargaining power and the surprise to the weaker party that results from hidden terms or the lack of informed choice.” (*Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 793.) “Substantive unconscionability arises when a contract imposes unduly harsh, oppressive, or one-sided terms.” (*Id.* at p. 795.) “[T]he more substantively oppressive the contract term, the less evidence of

¹ Plaintiff’s evidentiary objections to the Link Declaration are all overruled.

procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz, supra*, 24 Cal.4th 83, 114.)

The BAA is an adhesion contract, or “a standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (*Neal v. State Farm Ins. Companies* (1961) 188 Cal.App.2d 690, 694.) The adhesive nature of a contract is sufficient to establish “a minimal degree of procedural unconscionability.” (*Gatton v. T-Mobile USA, Inc.* (2007) 152 Cal.App.4th 571, 586.) Plaintiff does not point to any other circumstances evidencing procedural unconscionability.

Plaintiff’s primary argument for substantive unconscionability is that the BAA is an “infinite agreement” under *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. In *Cook*, the Second District deemed the University of Southern California’s standard employee arbitration agreement unenforceable due to unconscionability. The court’s ruling was based on three factors. First, the arbitration agreement embraced *all* claims that the employee and USC might have against each other, including those having nothing to do with the employment relationship. (102 Cal.App.5th 312, 322.) Second, the agreement survived indefinitely. (*Id.* at p. 326.) This indefinite duration, coupled with the all-encompassing scope of the agreement, meant that “ ‘for the rest of her life, if [the employee] were to suffer an injury related to USC or its related entities, [she] could be ordered to arbitrate such claims.’ ” (*Id.* at p. 318 [quoting the trial court’s ruling].) For example, “if she was ‘the victim of a botched surgery in a USC hospital in 15 years, her claims could be subject to the arbitration agreement.’ ” (*Ibid.*) Finally, the agreement lacked mutuality because it required the employee to arbitrate her claims “against USC ‘or any of its related entities, . . . or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise[,]’ ” but did not require USC’s related entities to arbitrate their claims against the employee. (*Id.* at p. 326.) It thus “provid[ed] a significant benefit to USC’s related entities without any reciprocal benefit to [the employee].” (*Id.* at p. 328.)

In *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241, the Fifth District confronted an employee arbitration agreement very similar to that in *Cook*. The court stated that even if the agreement did endure indefinitely and embrace *any* claim the employee might have against the employer, even claims completely unrelated to the employment relationship, those factors did not make it unconscionable under the circumstances presented. According to the Fifth District, “[t]he agreement in *Cook* was unconscionable in part because of the multifarious ways in which a claim against USC ‘completely unrelated to [Cook’s] employment’ could arise.” (*Id.* at p. 257.) Given “the well-known, broad capacity of USC’s reach[,] *Cook* could be subject to the arbitration agreement forever in any manner of ways including not just a botched surgery but an injury while attending a USC football game in 15 years.” (*Id.* at p. 258.)

By contrast, the defendant employer in *Ayala-Ventura* was a provider of commercial janitorial services and so, by its nature, did not generate litigation opportunities in a number or variety approaching an entity like USC. (*Id.* at pp. 258-258.) Regarding the third factor identified in *Cook*, mutuality, the *Ayala-Ventura* court was simply untroubled by the fact that the agreement required the employee to arbitrate her claims against the employer’s other employees and agents, but not vice versa. It did not consider this to count toward a finding of unconscionability. (*Id.* at p. 259.)

Applying *Cook* and *Ayala-Ventura* to the facts presented, the Court concludes that the BAA is not an unenforceable infinite agreement. By its express terms, the BAA obligates its parties to arbitrate all claims they have may have against each other and is expressly not limited to those arising out of the employment relationship. (See Petition, Ex. A, § 2 [“Our agreement to arbitrate includes any and all claims which arise out of the employment context *or any other interaction/relationship* we had, have or may have in the future.”] [emphasis added].) But the Court is required to follow *Ayala-Ventura*, which dictates that this breadth only be treated as unconscionable when combined with an agreement of indefinite duration *and* when there is some enhanced likelihood that the employee may one day have a claim against the former employer that does not arise out of the employment relationship. (*Ayala-Ventura*, *supra*, 119 Cal.App.5th 241, 257 [“[W]e reiterate the importance of context in determining unconscionability. The various potential claims that could arise against USC together with the agreement’s infinite duration made it unconscionable.”].)

Defendant is a car dealership. It is not an entity that, like USC, interacts with the public in a great number of diverse ways, any of which could be a catalyst for litigation. The Court follows *Ayala-Ventura* and holds that the duration and scope of the BAA do not render it unconscionable under the circumstances presented here.

As to mutuality, the third *Cook* factor, Plaintiff argues that the BAA is unconscionable because it obligates Plaintiff to arbitrate claims not just against Defendant, but against various individuals and entities affiliated with Defendant as well, without a corresponding obligation upon those affiliated individuals and entities to arbitrate any claims they may have against Plaintiff.² This gives the BAA some degree of substantive unconscionability.

Plaintiff argues that the BAA contains unconscionable terms outside the *Cook* “infinite agreement” framework. First, the BAA provides that while “in most circumstances the Company will pay all costs and arbitrator fees unique to the arbitration as required by controlling case law, . . . the Company shall not be responsible for paying the arbitrator’s fees and costs for the arbitration hearing sooner than 60 days before the commencement of the arbitration hearing.” (Petition, Ex. A, § 6.) Plaintiff invokes Code of Civil Procedure, section 1281.98, subdivision (a), which provides that a drafting party to an arbitration agreement is in material breach of that agreement where “the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the due date[.]” Plaintiff contends that Section 6 of the BAA is unconscionable because it “indicate[s] Defendant’s clear intent to violate” Section 1281.98(a). Upon comparing Section 6 of the BAA to the text of Section 1281.98(a), the Court cannot follow Plaintiff’s logic here and cannot understand how the fee provision is unfair to Plaintiff.

Second, the BAA purports to prohibit Plaintiff from bringing claims under PAGA in any forum. (Petition, Ex. A, § 7 [“By signing below, you expressly waive the right to bring a class, collective, representative or PAGA claim (unless prohibited by controlling law) seeking any relief on behalf of others.”].) This provision is unenforceable, as described below. This provision can be severed from the arbitration agreement consistently with the BAA’s Section 10,

² See Petition, Ex. A, §§ 1 (“Our agreement to submit all claims to binding arbitration includes any claims that either of us may have against any third-party beneficiaries as mentioned below.”); 2 (“I understand that this agreement requires me to pursue all claims I bring against the Company (and any third-party beneficiaries) through binding arbitration and requires that the Company submit any claims it has against me to binding arbitration[.]”)

which provides that “the prohibition on the arbitrator hearing class claims and/or collective claims shall not be severable.”

The severance provision provides: “If any term or provision, or portion of this agreement, is declared void or unenforceable, it shall be severed, and the remainder of this agreement shall be enforceable.” (Petition, Ex. A, § 10.) The legal effect of his language is merely to “express[] . . . the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced.” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 517.) This term is not legally capable of requiring a court to sever an unenforceable provision instead of invalidating the contract if the court believes severance cannot cure the problematic aspects of the agreement. (*Ibid.*) This severance provision is not one-sided. It operates to the benefit of anyone trying to enforce the BAA, whether that is Plaintiff or Defendant.

Plaintiff has demonstrated light procedural unconscionability inherent in any adhesive contract. As a result, the showing of substantive unconscionability must be heavy to have the BAA deemed unenforceable on unconscionability grounds. (See *Armendariz, supra*, 24 Cal.4th 83, 114 [discussing this sliding-scale approach].)

The petition to compel arbitration is GRANTED as to Plaintiff’s First through Ninth Causes of Action to the extent he brings them in his individual capacity. The Court addresses these claims as brought in Plaintiff’s representative capacity, and his PAGA claim, below.

A. Class Action

Where the FAA applies, it preempts state law rules limiting the enforceability of class and representative action waivers in arbitration agreements. (See *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 366 [overruled in part by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 662].) Such waivers are enforced according to their terms. The BAA states that Plaintiff “expressly waive[s] the right to bring a class . . . claim . . . seeking any relief on behalf of others.” (Petition, Ex. A, § 7.) As a result, his class action claims are properly dismissed.

B. Representative Claim

“[A]n employee’s right to bring a PAGA action is unwaivable” and any “agreement by employees to waive their right to bring a PAGA action[,]” including one contained in an arbitration agreement, “is against public policy and may not be enforced.” (*Iskanian, supra*, 59 Cal.4th 348, 383.) This aspect of *Iskanian* survived *Viking River, supra*, 596 U.S. 639, which abrogated *Iskanian* in part. (596 U.S. 639, 662; see also *Ford v. The Silver F, Inc.* (2025) 110 Cal.App.5th 553, 564 [“*Viking River* did not disturb *Iskanian*’s rule that a contractual waiver of the right to prosecute PAGA claims is unenforceable under California law.”].) Thus, Plaintiff is permitted to maintain his PAGA claim.

Iskanian also deemed unenforceable any agreement that a PAGA claim shall be split into representative and individual components for arbitrability purposes. (*Viking River, supra*, 596 U.S. 639, 648-649 [also discussing the difference between a “representative” and an “individual” PAGA claim].) In *Viking River*, the United States Supreme Court reversed this portion of *Iskanian*, holding that the FAA requires state courts to enforce agreements to split PAGA claims in this manner. (596 U.S. 639, 662; *Ford, supra*, 110 Cal.App.5th 553, 564.)

Thus, *Viking River* requires enforcement of an agreement to arbitrate the individual portion of a plaintiff's PAGA claim if that agreement is covered by the FAA. (*Adolph, supra*, 14 Cal.5th 1104, 1119.) Contrary to Defendant's argument (Memorandum, p. 5) the BAA does not provide that any PAGA claims shall be split into representative and individual portions for arbitrability purposes. It states that "claims brought pursuant to PAGA" are *not arbitrable*. (Petition, Ex. A, § 7.) As a result, no portion of Plaintiff's PAGA claim shall be arbitrated. He is entitled to litigate the entire claim in court. The motion is denied as to the Tenth Cause of Action.

Defendant to prepare the motion.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0010022

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MICHAEL
BOROKHOVICH

vs.

DEFENDANT: VOLKSWAGEN A.G., A
MULTINATIONAL CORPORATION, ET AL

NATURE OF PROCEEDINGS: MOTION – QUASH

RULING

Defendant Volkswagen A.G. made a special appearance on July 2, 2026, to file a motion to quash service of summons and complaint. The motion also seeks an order dismissing the claims against it for lack of personal jurisdiction.

Plaintiff has not filed a response, nor was an opposition to the motion filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) Defendants' motion is therefore GRANTED in it's entirety.

Defendant to lodge the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).